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2.04: BOARD OF COUNTY COMMISSIONERS

CHAPTERS:

2.04.010 MEETINGS

2.04.020 CHAIR RESPONSIBILITIES

2.04.030 COMMISSIONER DISTRICTS

2.04.010: MEETINGS

- A. The designated public place for posting information and times regarding such meetings shall be on the Pitkin County website (www.pitkioncounty.com). Each meeting notice shall be posted no less than twenty-four (24) hours prior to the holding of the meeting.
- B. The Board of County Commissioners can conduct unlimited discussion but will not adopt any proposed policy, position, resolution, ordinance, rule, regulation, or formal action at a work session or at any other time other than in a regular or special meeting.
- C. An item for reconsideration must be heard at the same meeting or no later than the next regular meeting. A motion for reconsideration must be made by one of the Commissioners who voted in the majority on the item. A second on the motion may be made by any Commissioner regardless of their past action on the item.
- D. Executive sessions will be held only at a regular or special meeting, upon a vote of two-thirds of the quorum present, and adoption of any proposed policy, position, resolution, rule, regulation, ordinance or formal action shall occur after the executive session at the regular or special meeting open to the public.
- E. The minutes of a meeting during which an executive session is authorized shall reflect the general topic of the discussion at the executive session. (Res. 91-94 §§ 1–4) (Amended (part) by Ord. 016-2018, 04-11-2018)

2.04.020: CHAIR RESPONSIBILITIES

The responsibility of the Chair is, primarily, to establish procedural integrity and, secondarily, representation of the Board of County Commissioners to outside parties (as delegated by the Board):

Accordingly, the following procedures apply:

- A. The responsibility of the Chair is to consistently guide the behavior of the Board with its own rules and those legitimately imposed upon it from outside the organization.
- B. Meeting agendas and discussion content will be only those issues which, according to Board policy, clearly belong to the Board to decide.
- C. Deliberation will be fair, open, orderly and thorough, but also efficient, limited to time and kept to the point.
- D. The authority of the Chair is to set the agendas, preside over meetings, and sign documents as authorized by the Board of County Commissioners.
- E. The Chair represents the Board only when delegated those responsibilities by the Board. (§ 2.04 amended (part) res 173-2004)

2.04.030: COUNTY COMMISSIONER DISTRICTS

The five (5) Commissioner Districts are geographically defined based on population as calculated from the census data each 10 years, per statute. The written description of each District along with detailed maps are available in the Pitkin County Clerk and Recorder's Office. The maps of the Districts are also available on the Geographic Information Systems' (GIS) Maps and More webpage on the Pitkin County website www.pitkincounty.com.

(§ 2.04 amended (part) ord. 100-1995; reso. 169-2001; ord. 005-2001) amended (in part) Ord. 009-2024, 05-22-2024; amended (in part) Ord. 009-2024, 05-22-2024

2.08: STANDARD OF CONDUCT FOR PUBLIC OFFICIALS

CHAPTERS:

- 2.08.010 APPLICABILITY
- 2.08.020 PREAMBLE
- 2.08.030 IMPLEMENTATION
- 2.08.040 POLICY ROLE OF PUBLIC OFFICIALS
- 2.08.050 CONDUCT OF PUBLIC OFFICIALS

- 2.08.060 CONDUCT OF PUBLIC MEETINGS
- 2.08.070 COMMUNICATION
- 2.08.080 CONFLICT OF INTEREST
- 2.08.090 GIFTS AND FAVORS
- 2.08.100 CONFIDENTIAL INFORMATION
- 2.08.110 USE OF PUBLIC RESOURCES
- 2.08.120 REPRESENTATION OF PRIVATE INTERESTS
- 2.08.130 ADVOCACY
- 2.08.140 INDEPENDENCE OF BOARDS AND HEARING OFFICERS
- 2.08.150 POSITIVE WORKPLACE ENVIRONMENT
- 2.08.160 ABSENTEEISM
- 2.08.170 COMPLIANCE AND ENFORCEMENT

2.08.010: APPLICABILITY

The standards contained herein apply to the following:

A. Board Members, which include:

- (1) Members elected to the Board of County Commissioners.
- (2) Members appointed to Volunteer Citizen Boards by the Board of County Commissioners.

B. The County Manager and the County Attorney.

C. The elected County Sheriff, County Assessor and County Clerk and Recorder

D. Department Directors appointed by the County Manager

E. County Hearing Officers.

2.08.020: PREAMBLE

The citizens of Pitkin County are entitled to fair, ethical and accountable local government that earns the public's confidence in the integrity of public officials. In keeping with Pitkin County's commitment to the public trust, the effective functioning of democratic government therefore requires that:

- A. Public officials respect the laws and policies affecting the operations of government; and
- B. Public officials be independent, impartial and fair in their judgment and actions; and
- C. Public office be used for the public good, not for personal gain; and
- D. Public deliberations and processes be conducted openly, unless legally confidential, in an atmosphere of respect and civility.

All public officials must understand, respect, and value the job, the organization, the employees, the citizens, and the common public interest.

To this end, the Pitkin County Board of County Commissioners has adopted a Standard of Conduct for Public Officials to assure public confidence in the integrity of local government and its effective and fair operation. (*Ord. 02-28, Exh. A, Ord. 005-10*)

2.08.030: IMPLEMENTATION

The Pitkin County Standard of Conduct is intended to be self-enforcing and shall be included in the regular orientations for new board members, and newly elected and appointed officials and Department Directors. In addition, the Standard of Conduct shall be reviewed by the Board of County Commissioners to consider recommendations and to update it as necessary. (*Ord. 02-28, Exh. A; Ord. 005-10*)

2.08.040: POLICY ROLE OF PUBLIC OFFICIALS

Public officials shall respect and adhere to the Board-Manager structure of Pitkin County government as outlined by the Home Rule Charter. In this structure, the Board of County Commissioners determines the policies of the County with the advice, information and analysis provided by the public, boards and commissions, and County staff.

(*Ord. 02-28, Exh. A; Ord. 005-10*)

- A. Board of County Commissioners: The primary responsibility of the members of the Board of County Commissioners is to establish the overall policies for the County and to exercise the powers, duties, and functions of the County in

compliance with applicable law and the Home Rule Charter, through action at regular and special meetings and other job-related duties and functions.

- B. County Manager and County Attorney: The Primary responsibility of the County Manager is to execute the policies set by the Board of County Commissioners. The Primary responsibility of the County Attorney is to be the chief legal officer of the Board of County Commissioners and the Administration.
- C. Department Directors: The primary responsibility of County Department Directors is to develop, communicate, and implement organizational policies, to recommend public and budgetary policies to the Board of County Commissioners and to implement policies of the Board of County Commissioners.
- D. Volunteer Citizen Board Members: The primary responsibility of the members of the various Citizen Boards is to exercise the duties and responsibilities vested in each board through formal action of that Citizen Board at regular and special meetings.
- E. County Hearing Officers: The primary responsibility of County Hearing Officers is to provide contract services to the County to conduct judicial or quasi-judicial proceedings on various County matters.

2.08.050: CONDUCT OF PUBLIC OFFICIALS

The professional conduct of public officials must be of the highest standard. Recognizing that stewardship of the public interest must be their primary concern, public officials will work for the common good of all the people of Pitkin County, and will assure fair and equal treatment of all persons, claims and transactions coming before Pitkin County Boards. (*Ord. 02-28, Exh. A; Ord. 005-10*)

Public officials shall be dedicated to the highest ideals of honor and integrity in order to merit the respect and confidence of the public. Public officials shall perform their duties in accordance with the processes and rules of order established by the County Commissioners governing the deliberation of public policy issues, with meaningful involvement of the public, and through implementation of policy decisions of the Board of County Commissioners by staff. (*Ord. 02-28, Exh. A; Ord. 005-10*)

Public officials shall comply with the laws of the United States, the State of Colorado and Pitkin County in the performance of their public duties. These laws include, but are not limited to: The United States and Colorado constitutions; the Pitkin County Home Rule Charter; laws pertaining to conflicts of interest, election campaigns, financial disclosures, employer responsibilities, open processes of government; and County ordinances and policies. (*Ord. 028-02, Exh. A; Ord. 005-10*)

2.08.060: CONDUCT OF PUBLIC MEETINGS

Public officials shall prepare themselves for public issues, listen courteously and attentively to all public discussions before the body, and focus on the business at hand. Public officials shall base their decisions on the merits and substance of the matter before them. *(Ord. 02-28, Exh. A; Ord. 005-10)*

2.08.070: COMMUNICATION

Public officials shall publicly share all information regarding a matter under consideration that they may have received from sources outside the public decision-making process. Board members and County Hearing Officers involved in quasi-judicial land use decisions or other judicial or quasi-judicial decisions shall disclose any such communications at the public hearing or public meeting. *(Ord. 02-28, Exh. A; Ord. 005-10)*

After an application has been submitted to the County, Board Members and County Hearing Officers shall not intentionally engage in communications with interested parties regarding issues upon which they must make a judicial or quasi-judicial decision at a public meeting or public hearing. Judicial or quasi-judicial decisions are those for which there is a specific applicant (or appellant) requesting a decision from the Board Members or Hearing Officer, based upon specific facts to be considered at the hearing or meeting and made a part of the record. *(Ord. 044-05 § 2.10.070 amended (part) Res. 044-05; Ord. 005-10)*

2.08.080: CONFLICT OF INTEREST

The policy on Conflict of Interest for County Policy makers is identified in the Home Rule Charter 8.6.1. Conflicts of interest can occur both from private interests and from institutional interests.

A. Private Conflicts of Interest: The following public officials are subject to the conflict of interest provisions in the Pitkin County Home Rule Charter 8.6.1 (b.): County Commissioners, County Manager, Assistant County Manager, Community Development Director, County Attorneys and the Open Space and Trails Director.

For other Department Directors not identified as subject to the Home Rule Charter provisions and for Volunteer Citizen Board members and County Hearing Officers the following conflict of interest policy shall apply:

- A conflict of interest is a disparity between the private interest and the official responsibilities of an individual in a position of trust in government. This policy is intended to prevent conflicts of interest without obstructing fair and speedy resolution of issues that come before the County.

- No Department Director, Volunteer Citizen Board Member, or County Hearing Officer shall vote or otherwise participate in a decision-making process which affects any property, asset, or entity in which they have a known significant financial interest or in which any member of their family has a known significant financial interest. Family is defined as spouse, parent, brother, sister, grandparent, child, grandchild, step-child, step-parent, step-grandparent, mother-in-law, father-in-law, brother-in-law, sister-in-law, son-in-law, daughter-in-law, or any individual who is a part of the Department Director's, Citizen Board Member's, or County Hearing Officer's immediate household. Any Department Director or Volunteer Citizen Board Member otherwise barred from participating in a discussion pursuant to this chapter may, if requested by their respective board or the County Manager, give information about the issue in which they or their family has a financial interest. A County Hearing Officer may not hear a matter in which they or their family has a financial interest.
- This prohibition and the prohibition on institutional conflicts in paragraph B below, shall not prevent Department Directors from performing their work for the County, so long as any financial interest held by a Department Director is not in conflict with the common public interest, and is disclosed to the County Manager or, in the case of the County Manager, to the Board of County Commissioners. The County Manager has the discretion to direct a Department Director to refrain from participation when a conflict exists.
- If an issue arises in which a Volunteer Board Member believes they may have either a private or an institutional conflict of interest, they must disclose that potential conflict of interest to their respective board and the County Attorney for an opinion on the validity of the conflict. If determined to be in conflict regarding the issue before them, they will refrain from participation as a board member in the decision-making process or voting on that issue. A board member may vote on an issue notwithstanding the conflict only if their participation is necessary to obtain a quorum or otherwise enable the board to act.
- If an issue arises in which a Department Director believes they may have a conflict of interest, they must disclose that potential conflict of interest to the County Manager for an opinion on the validity of the conflict. If determined to be in conflict regarding the issue before them, they will refrain from participation in the decision-making process or voting on that issue.
- If an issue arises in which a County Hearing Officer believes they may have a conflict of interest, they must disclose that potential conflict of interest to the County Attorney for an opinion on the validity of the conflict. If determined to be in conflict regarding the issue before them, they will be disqualified from acting as Hearing Officer on that matter.

- B. Institutional Conflicts of Interest: An institutional conflict of interest occurs when a Public Official is a member of a board, group, or organization that is requesting action from the Public Official or the Board of County Commissioners of Pitkin County or volunteer Citizen Board of which the Public Official is a member, and the action requested provides a benefit to the board, group, or organization that is different from the common public interest. No Public Official shall vote or otherwise participate in a decision making process requested by a board, group, or organization of which he or she is a member when an institutional conflict of interest exists.

The process for handling these institutional conflicts are the same as expressed in this Standard of Conduct for handling private conflicts. Institutional conflicts of those Public Officials subject to the Home Rule Charter provisions on conflicts are governed by the Home Rule Charter process. (*Ord. 02-28, Exh. A § 2.10.080 amended (part) Res. 002-05; Ord. 005-10*)

2.08.090: GIFTS AND FAVORS

Public officials shall not take any special advantage of services or opportunities for personal gain, by virtue of their public office. They shall refrain from accepting any gifts, favors or promises of future benefits which might compromise their independence of judgment or action or give the appearance of being compromised. Acceptance of nominal gifts in keeping with special occasions, meals and refreshments in the ordinary course of business, or social courtesies, which promote good public relations and encourage participation in community events, is permitted. (*Ord. 02-28, Exh. A; Ord. 005-10*)

2.08.100: CONFIDENTIAL INFORMATION

Public officials have a duty and obligation to promote what should be public and a duty and obligation to protect what should be confidential. Public officials shall respect that certain information concerning the property, personnel or affairs of the County is confidential. They shall neither disclose confidential information, nor use such information to advance their personal, financial or other private interests without prior authorization from their respective boards. (*Ord. 02-28, Exh. A; Ord. 005-10*)

2.08.110: USE OF PUBLIC RESOURCES

Public officials shall not use public resources not available to the public in general, such as County staff time, equipment, supplies or facilities, for personal gain. (*Ord. 02-28, Exh. A; Ord. 005-10*)

2.08.120: REPRESENTATION OF PRIVATE INTERESTS

In keeping with their role as stewards of the public interest, board members shall not appear before their own boards or before the commissioners on behalf of the private interests of third parties on matters related to the areas of service of their boards. *(Ord. 02-28, Exh. A; Ord. 005-10)*

2.08.130: ADVOCACY

Board members shall represent the official policies or positions of their board to the best of their ability when designated as delegates for this purpose. When presenting their individual opinions and positions, board members shall explicitly state they do not represent their body or Pitkin County, nor will they allow the inference that they do. *(Ord. 02-28, Exh. A; Ord. 005-10)*

2.08.140: INDEPENDENCE OF BOARDS AND HEARING OFFICERS

Because of the value of the independent advice of Volunteer Citizen Boards and County Hearing Officers to the public decision-making process, members of Board of County Commissioners shall refrain from using their position to unduly influence the deliberations or outcomes of appointed board or hearing officer proceedings. *(Ord. 02-28, Exh. A; Ord. 005-10)*

2.08.150: POSITIVE WORK PLACE ENVIRONMENT

Public officials shall support a positive and constructive work place environment for County employees and for citizens and businesses dealing with the County. Any single board member should not give direction to staff, but after a decision of the majority of the board present at a meeting, the request can then be forwarded to the County Manager, or to the applicable staff liaison for Citizen Boards, to give staff direction. However, individual board members may seek information directly from staff, which will then be distributed to all board members. If a board member has a request that is of a magnitude that disrupts the normal workflow of a County employee, the request shall go through the County Manager. This chapter shall not be construed to prohibit the County Manager or staff liaisons from obtaining direction from board members in emergency situations when a meeting cannot be held before some action is necessary.

(Ord. 02-28, Exh. A; Ord. 005-10)

2.08.160: ABSENTEEISM

Members of the Board of County Commissioners shall make every effort to attend all scheduled meetings. If they are unable to attend any meeting they shall advise the County Manager.

Each Volunteer Citizen Board shall recommend its own absenteeism policy and include this policy in its bylaws. All Citizen Board members shall comply with their respective Board's absenteeism policy. (*Ord. 02-28, Exh. A; Ord. 005-10*)

2.08.170: COMPLIANCE AND ENFORCEMENT

The Pitkin County Standard of Conduct expresses standards of ethical conduct expected for members of the Pitkin County Commissioners, Volunteer Citizen Board Members Department Directors and County Hearing Officers. Public Officials themselves have the primary responsibility to assure that ethical standards are understood and met, and that the public can continue to have full confidence in the integrity and effective functioning of government.

Any volunteer citizen board member may notify the Board of County Commissioners, through the County Attorney, when actions that appear to be in violation of the Standard of Conduct are brought to their attention. The County Attorney shall bring any alleged violation to the full Board of County Commissioners. The Board of County Commissioners may impose sanctions, up to and including removal of members of Volunteer Citizen Boards and County Hearing Officers, for violation of this Standard of Conduct.

The Board of County Commissioners may impose sanctions on commissioners whose conduct does not comply with the County's ethical standards, such as reprimand, public or private censure, loss of seniority or committee assignment, or budget restriction. The imposition of sanctions on any board member requires the unanimous approval of the full Board of County Commissioners, except for any Commissioner who is the subject of the proposed sanction.

Unless prohibited by law, deliberations and consideration of sanctions, if any, shall be conducted at a public meeting.

County staff subject to this Standard of Conduct may be subject to disciplinary action by their supervisor, up to and including termination of employment for violation of this Standard of Conduct.

Except as provided in the Home Rule Charter, a violation of this Standard of Conduct shall not be considered a basis for challenging the validity of a County Commissioner, Volunteer Citizen Board, or County Hearing Officer decision, and shall not create any legal rights for a private citizen.

This chapter on sanctions does not supersede the provisions of the Home Rule Charter, and in the event of any conflicts between this Standard of Conduct and the Home Rule Charter, the Home Rule Charter prevails. (*Ord. 02-28, Exh. A; amended (part) Res. 173-04; Ord. 005-10 (Ord. 02-28, Exh. A; Ord. 005-10) amended (part) Ord. 009-2024, 05-22-2024*)

2.12: CITIZEN BOARDS, COMMISSIONS, COMMITTEES AND TASK FORCES

CHAPTERS:

2.12.010 PURPOSE

2.12.020 OPEN MEETINGS

2.12.030 CATEGORIES

2.12.040 RECRUITMENT

2.12.050 TERMS OF APPOINTMENT

2.12.060 NUMBER OF MEMBERS

2.12.070 STAFF LIAISON

2.12.010: PURPOSE

Pursuant to the Home Rule Charter Article III, Citizen Boards, the Board of County Commissioners encourages citizen involvement in governmental activity through the use of Citizen Boards, to have its Citizen Board members understand the guidelines governing their service, and to have consistency among the County Citizen Boards in their policies and procedures. *(Res. 91-23 §§ 2—4,)*

2.12.020: OPEN MEETINGS

Citizen Boards are County public bodies, subject to Colorado's open meeting law.

2.12.030: CATEGORIES

A. For purposes of appointment, volunteer Citizen Boards are divided into three categories:

- 1) Policy, Advisory and Management Bodies: A standing board that reviews policy and procedures of County departmental operations, fiscal conditions, master plans, and reports findings and/or recommendations as it deems appropriate to the Board of County Commissioners;
- 2) Appeal and Administrative Review Bodies: A standing board that reviews actions of the County in the areas of land use determinations and

variances, election processes, conflicts of interest and other actions where an administrative appeal may be made; and

- 3) Ad-Hoc Issue Task Forces: A temporary committee formed for a specific task or objective and dissolved once the final expected product is produced or achieved.

B. Whenever any volunteer body is formed, it shall be identified as a category as described above.

2.12.040: RECRUITMENT

When a vacancy occurs on any Citizen Board, the Board of County Commissioners will:

- A. Advertise the vacancy, describing the open position with a prescribed closing date, through the County Manager's Office.
- B. Make available a standard form application for interested applicants through the County Manager's Office.
- C. Accept and review applications through the County Manager's Office to determine candidates for interviewing.
- D. Interview qualified applicants at public meetings of the Board of County Commissioner.
- E. Appoint every Citizen Board member by resolution at a regular meeting of the Board of County Commissioners.

2.12.050: NUMBER OF MEMBERS AND TERMS OF APPOINTMENT

The term for service and number of members on a Citizen Board varies from board to board, but is established through Article III – Citizen Boards of the Pitkin County Home Rule Charter, through enabling legislation creating the Citizen Board, or through applicable law.

2.12.070: STAFF LIAISON

All Citizen Boards shall have a staff person to act as a liaison between the Board and the County. The Staff Liaison's responsibilities are:

- A. Assist with meetings and keep minutes.
- B. Serve as liaison to the Board of County Commissioners.

- C. Advise the County Manager's Office of any unscheduled vacancies, whether existing members desire reappointment when their terms expire; of any change in staff liaison, and of any recommended changes in by-laws.
- D. Provide members with copies of the Standard of Conduct, Bylaws and any adopted policies or codes applicable for service on the Citizen Board.

2.12.080: RENUMERATION

All Citizen Board members serve as volunteers. Members may be reimbursed for necessary meals, mileage, training, and other expenses only if approved in advance by the staff liaison, and only if sufficient budget is available for the expense.

(Res. 91-23 §§ 2—4)

2.12.090: BY-LAWS

Each Citizen Board shall adopt by-laws, approved by the Board of County Commissioners by Informal one reading Resolution, governing its procedures and establishing its attendance policy. A copy of current by-laws shall be maintained by the staff liaison for the Citizen Board, and by the County Manager's Office.

2.12.100: STANDARD OF CONDUCT

Citizen Board members must abide by Title 2 Chapter 08 of the Pitkin County Code: Standard of Conduct for Public Officials. Members serving on Citizen Boards that are governed by adopted codes or policies are required to uphold those codes or policies in conducting business. In addition, all Citizen Board members shall comply with their respective Board's absenteeism policy as established in the Board's By-laws.

2.12.110: VEHICLE USE

Volunteer Board Members may use county-owned vehicles for official county business only, provided the member has a current and valid Colorado operator's license, and has completed a current release of information form with Human Resources to allow access to the member's driving record. Individuals operating county vehicles are required to follow the County's Use of County Vehicle Policy. Permission to use a county vehicle may be denied if a driver is considered a risk by the County's vehicle insurance provider.

2.12.120: ERRORS AND OMISSIONS INSURANCE

Board Members, in performing their duties, will be covered by the County's Errors and Omissions Insurance.

2.12.140: LIST OF CITIZEN BOARDS

The County Manager's Office shall maintain a current list of all Citizen Boards, including for each its purpose, category, its members and their terms, and its staff liaison, with contact information. *(Res. 91-23 §§ 2—4)*

2.16: RECORDS MANAGEMENT PROGRAM

CHAPTERS:

2.16.010 PURPOSE

2.16.020 DEFINITIONS

2.16.030 PROGRAM OBJECTIVES

2.16.040: PROGRAM RESPONSIBILITY

2.16.010: PURPOSE

Pitkin County provides for efficient, economical and effective controls over the creation, distribution, organization, maintenance, use and disposition of all records through a comprehensive system of integrated procedures for the management of records from their creation to their ultimate disposition, consistent with accepted records management practices. *(Res. 91-115 § 1)*

2.16.020: DEFINITIONS

Records include, but are not limited to all documents, papers, letters, books, maps, photographs (whether stored in paper or electronic form), emails, text messages, voicemails, sound or video recordings, microfilm, magnetic tape, electronic media, or other information recording media, regardless of physical form or characteristic and regardless of whether public access to it is open or restricted under the laws of the state, created or received by Pitkin County or any of its officers or employees pursuant to law or in the transaction of public business and shall be created, maintained and disposed of in accordance with the provisions of this chapter or procedures authorized by it and in no other manner.

Records management means the application of management techniques to the creation, use, maintenance, retention, preservation and disposal of records. The term includes the development of record retention schedules, the management of filing and information retrieval systems, the protection of essential and permanent records, the economical and space-effective storage of inactive records, control over the creation and distribution of forms, reports and correspondence, and the management of micrographics and electronic and other records storage systems. *(Res. 91-115 § 2)*

2.16.030: PROGRAM OBJECTIVES

- A. Facilitate the creation of usable records containing accurate and complete information;
- B. Make recorded information available and readily accessible;
- C. Ensure the systematic legal disposal of obsolete records;
- D. Store records in a manner that ensures lasting survival. *(Res. 91-115 § 3)*

2.16.040: PROGRAM RESPONSIBILITY

The records management program falls under the administration of the County Manager. The County Manager shall appoint a Records Manager who will have the responsibility and authority to work with county officials and employees at all levels in the development and maintenance of the records management program including, but not limited to, developing and overseeing the records management budget, selection of records management systems and working with vendors on workflows related to records management processes. *(Res. 91-115 § 4)*

2.20: EMPLOYEES OF THE ADMINISTRATION

CHAPTERS:

- 2.20.010 PURPOSE
- 2.20.020 AUTHORITY
- 2.20.030 POLITICAL ACTIVITY
- 2.20.040 WORKING HOURS AND CONDITIONS

- 2.20.050 COMPENSATION
- 2.20.060 BENEFITS
- 2.20.070 PROBLEM RESOLUTION
- 2.20.080 MERIT EMPLOYMENT SYSTEM
- 2.20.090 NON-DISCRIMINATORY EMPLOYMENT PRACTICES

2.20.010: PURPOSE

It is the practice of Pitkin County to orient employees to the guidelines and policies enacted regarding working at Pitkin County. The sections of this Code are those identified as required to be established in the Home Rule Charter, Article VII – Miscellaneous, Section 8.4 Personnel Resolution, 8.4.2 Employees of the Administration. The County will make available an Employee Handbook and other resource documents to further provide employees with information regarding their employment with Pitkin County.

2.20.020: AUTHORITY

All County departments and employees, including other elected officials and their department are bound by this Code.

2.20.030: POLITICAL ACTIVITY

The County encourages employees to participate in matters of responsible citizenship, including participation in civic and political activities. County employees are subject to the provisions of Colorado law, which sets forth the regulations for political activity of local government employees. Employees are free, on their own time and away from any office of the County, to participate in all Federal, State, and local partisan campaigns and to openly express their views and support for a candidate or issue.

Employees shall refrain from any political activities which give the appearance that the County endorses a candidate or issue and/or which interferes with the performance of normal duties. Employees shall not be asked to make any type of contribution to a political party, elected officials or candidates, and their refusal to do so does not penalize them in any way. Employees who are elected to a County office must resign from their position at the County at the commencement of their elected term of office.

2.20.040: WORKING HOURS AND CONDITIONS

Core hours for the County are 8:30 am to 4:30 pm, Monday through Friday. Actual hours of operation and work schedules may vary for each office/department and are subject to change according to the needs of the County.

Working conditions for positions vary with position essential duties and physical location. Job descriptions and/or class specification describe the position's job duties, responsibilities and typical working conditions, as well as hiring qualifications, including required education, experience level(s) and licensure(s)/certification(s).

2.20.050: COMPENSATION

The County provides a systematic arrangement and inventory of County positions in a Classification Plan. Each position title is assigned to a class specification that lists the minimum requirements and qualifications needed to perform the job. By describing essential job functions, responsibilities and qualifications, the Classification Plan provides guidelines for establishing a compensation plan based on these relationships.

All County positions, except elected official and specific contract employees, are organized into a Compensation Plan and are assigned to a grade that establishes a specific range of allowable wage rates. A position's placement in a grade is based on an evaluation of factors including level of responsibility, decision-making requirements, differential supervisory difficulty and effort, complexity, skill, physical demands and work environment.

There may be certain positions that require special qualifications or that may be temporary or probationary that will have exceptions for setting compensation assignment.

2.20.060: BENEFITS

The County offers comprehensive benefit programs recognized for its progressive features and economic value. The employee benefits offered include, health, dental, vision, life and accidental death and dismemberment (D+AD&D), disability, retirement plans, wellness programs and paid leave. Employee benefit programs are evaluated annually and an annual guide is published that outlines all programs offered.

2.20.070 PROBLEM RESOLUTION

The County establishes and promotes positive employee relations and sound personnel management. As such, a series of options are provided to employees to follow in order to address and resolve complaints related to their work or employment. Specific information on the processes available are established through county policies.

2.20.080 MERIT EMPLOYMENT SYSTEM

The County is committed to the principles of a merit employment system designed to ensure a fair and equitable personnel management program dedicated to the recruitment, retention, and development of employees on the bases of merit and ability. It assures lawful treatment of applicants and employees in all aspects of personnel administration free of political influence or other non-merit factors.

2.20.090: NON-DISCRIMINATORY EMPLOYMENT PRACTICES

The County believes that all employees should have an equal opportunity to succeed in the workplace and are entitled to a workplace that is safe and free from discrimination, harassment, and retaliation based on the employee's protected status. Further, the County believes that when employees have a safe workplace that is free from discrimination, harassment, unfair treatment, and retaliation employees are more productive and are more inclined to remain in the employee's job and that the County benefits from increased employee productivity and retention. To this end, the County

adopts an equal employment opportunity policy to prevent and disincentivize unlawful harassment, discrimination, and retaliation based on protected classifications.

The EEO policy applies to all aspects of the relationship between the County and its employees, including, but not limited to recruitment, employment, promotion, transfer, training, working conditions, termination, wages and salary administration, and employee benefits. Pitkin County prohibits unlawful discrimination or harassment because of race, color, ethnic or national origin, ancestry, age, disability, sex, gender, sexual orientation, gender identity or expression, religion, political beliefs, creed, public assistance status, military status, veteran status, or any other legally protected characteristic (collectively "Protected Classes" or individually "Protected Class").

(Res. 91-115 § 4) amended (in part) Ord.009-2024, 05-22-2024